SA.H SUPPLY AGREEMENT No. SA-2026-3163 dated 4 January 2026
Between Brindle Marine & Energy Ltd (the Purchaser) and Pellam Pumps Ltd (the Supplier).

1. DEFINITIONS
1.1 "Contract Price" means the total price payable for the Goods as set out in Schedule 1.
1.2 "Warranty Period" means 12 months from the date of delivery of the Goods.
1.3 "Goods" means the items listed in Schedule 1 and specified in Schedule 2.
1.4 "Purchase Order" means an order for Goods placed by the Purchaser under this Agreement.

2. SCOPE
2.1 Supplier shall supply the Goods in accordance with Schedule 2 and Specification TS-709.
2.2 The Purchaser may order up to the Maximum Quantity of each item stated in Schedule 1. Orders above the Maximum Q
antity require a Variation under clause 21.

3. TERM
3.1 This Agreement takes effect on 4 January 2026 (the "Effective Date").
3.2 This Agreement continues until 4 January 2028 and shall not renew automatically; any extension requires written
greement signed by both parties.

4. PRICE
4.1 The Contract Price is the ceiling value in Schedule 1. Prices are firm and fixed for the Term.
4.2 The Contract Price shall not be subject to adjustment except under clause 31.

5. DELIVERY
5.1 Supplier shall deliver the Goods by the Delivery Date stated in each Purchase Order and in any case no later tha
 14 January 2027 (the "Long-Stop Delivery Date").
5.2 Each Purchase Order shall allow not less than 20 weeks from the date of the Purchase Order to the Delivery Date.

6. PAYMENT
6.1 The Purchaser shall pay each undisputed invoice within 60 days of receipt.
6.2 Invoices shall be issued only after the Inspection Release Certificate has been issued under clause 7.

7. INSPECTION
7.1 The Purchaser may inspect the Goods at any stage of manufacture on 7 working days' notice.
7.2 The shell hydrostatic test is a hold point and the final inspection is a witness point, as set out in Schedule 4
7.3 All test equipment shall hold a valid calibration certificate on the date of the test.

8. WARRANTY
8.1 Supplier warrants the Goods against defects for 12 months from delivery.
8.2 Supplier shall repair or replace defective Goods at its own cost within a reasonable time.

9. LIQUIDATED DAMAGES
9.1 If delivery is late, Supplier shall pay liquidated damages at 1.0% of the value of the late Goods for each compl
te week of delay.
9.2 Liquidated damages shall not exceed 10% of the value of the late Goods.

10. LIMITATION OF LIABILITY
10.1 Each party's total aggregate liability under this Agreement is limited to £1,000,000.00, except for death or pe
sonal injury caused by negligence, and fraud.
10.2 Neither party is liable for indirect or consequential loss.

11. SEVERABILITY
11.1 If any provision is found invalid or unenforceable, the rest of this Agreement continues in effect.
11.2 The parties shall negotiate in good faith a valid replacement that achieves the original intent.
11.3 This clause does not apply where removing the provision defeats the main purpose of this Agreement.

12. INSURANCE
12.1 Supplier shall maintain public liability insurance of not less than £5,000,000 for each claim throughout the Te
m.
12.2 Supplier shall maintain product liability insurance of not less than £5,000,000 for the duration of the Warrant
 Period.
12.3 Supplier shall provide certificates of insurance on written request.

13. INTELLECTUAL PROPERTY
13.1 Each party retains ownership of the intellectual property it brings to this Agreement.
13.2 Supplier grants the Purchaser a perpetual, non-exclusive licence to use the manuals and drawings supplied with
he Goods.
13.3 Supplier shall indemnify the Purchaser against claims that the Goods infringe third-party rights, subject to pr
mpt notice of the claim.

14. AUDIT
14.1 The Purchaser may audit Supplier's quality records relating to the Goods on 30 days' notice during normal worki
g hours.
14.2 Supplier shall retain manufacturing and inspection records for 2 years after delivery.
14.3 Each party bears its own costs of an audit unless it reveals a material non-conformance.

15. QUALITY SYSTEM

15.1 Supplier shall maintain a quality management system certified to ISO 9001 or equivalent throughout the Term.
15.2 Supplier shall notify the Purchaser within 30 days if its certification is suspended or withdrawn.
15.3 Supplier shall implement the corrective actions the Purchaser reasonably requires after an audit.

16. PACKING AND SHIPPING
16.1 Supplier shall pack the Goods to protect them against damage and corrosion during transport and storage.
16.2 Each package shall be marked with the Purchase Order number, item code and gross weight.
16.3 Risk passes to the Purchaser on delivery; title passes on payment.

17. WAIVER
17.1 A failure or delay in exercising a right is not a waiver of that right.
17.2 A waiver is effective only if given in writing and signed by the waiving party.
17.3 A waiver of one breach is not a waiver of any later breach.

18. CONFIDENTIALITY
18.1 Each party shall keep the other party's Confidential Information secret and shall not disclose it to any third
arty without prior written consent.
18.2 These obligations continue for 2 years after the end of this Agreement.
18.3 Disclosure required by law or by a regulator is permitted if the disclosing party gives prior notice where lawf
l.

19. TERMINATION
19.1 Either party may terminate this Agreement by written notice if the other commits a material breach that is not
emedied within 30 days of notice.
19.2 The Purchaser may terminate for convenience on 120 days' written notice, paying for Goods delivered and work in
progress.
19.3 Termination does not affect rights accrued before the date of termination.

20. NOTICES
20.1 Notices shall be in writing and sent to the address of the receiving party stated in this Agreement.
20.2 A notice delivered by hand is received on delivery and a notice sent by recorded post is received on the second
working day after posting.
20.3 Either party may change its address by notice to the other.

21. VARIATIONS
21.1 No variation is effective unless recorded in a written Variation Order signed by both parties.
21.2 A Variation Order shall state the original and revised quantities and the effect on the price.

22. GOVERNING LAW
22.1 This Agreement is governed by the laws of Scotland.
22.2 The courts of Scotland have exclusive jurisdiction.

SCHEDULE 1 - PRICE SCHEDULE (ceiling quantities)
Ref | Item | Description | Max Qty | Unit price | Max value
S1.1 | PU-414 | Centrifugal pump set, DN50 | 120 | £23,380.28 | £2,805,633.60
S1.2 | CV-972 | Check valve, swing type, DN200 | 60 | £1,530.09 | £91,805.40
S1.3 | SK-620 | Basket strainer, DN50 | 200 | £2,278.61 | £410,149.80
S1.4 | FL-589 | Weld neck flange, DN150 | 60 | £490.45 | £29,427.00
S1.5 | HX-174 | Plate heat exchanger, DN150 | 40 | £20,461.56 | £818,462.40
S1.T | TOTAL | | | £4,201,050.40

S2.H SCHEDULE 2 - TECHNICAL REQUIREMENTS (Specification TS-709 Rev A)
Ref | Item | Rating | Material | Minimum shell test pressure (bar)
S2.1 | PU-414 | Class 1500 | ASTM A182 F316L | 383
S2.2 | CV-972 | Class 300 | ASTM A350 LF2 | 77
S2.3 | SK-620 | Class 600 | ASTM A105 | 153
S2.4 | FL-589 | Class 900 | ASTM A216 WCB | 230
S2.5 | HX-174 | Class 150 | ASTM A216 WCB | 29

SCHEDULE 3 - COMMERCIAL SUMMARY
S3.1 Payment: 30 days from receipt of invoice
S3.2 Warranty: 12 months from delivery
S3.3 LD cap: 10% of value of late Goods
S3.4 Liability cap: £1,000,000.00
S3.5 Governing law: Scotland
S3.6 Long-Stop Delivery Date: 14 January 2027

S4.H SCHEDULE 4 - INSPECTION AND TEST PLAN (notice of inspection: 7 working days)
S4.1 Material verification (PMI) | R (Review)
S4.2 Shell hydrostatic test | R (Review)
S4.3 Final visual and dimensional inspection | W (Witness)

SCHEDULE 5 - ANNEX: GENERAL CONDITIONS
A.1 Headings are for convenience only and do not affect interpretation.
A.2 References to a statute include that statute as amended or re-enacted from time to time.
A.3 The Purchaser may suspend work on written notice for up to 30 days without liability for the suspension.

SIG.P Signed for the Purchaser: A. Whitcombe (Procurement Director) Date: 4 January 2026
SIG.S Signed for the Supplier: R. Halloran (Commercial Manager) Date: 4 January 2026